

LW1108 · INTRODUCTION TO THE LEGAL SYSTEM

# Full Marking Scheme

Section B · Winter 2022/23 Examination · Paper 1

|                     |                                  |
|---------------------|----------------------------------|
| Module Code         | LW1108                           |
| Module Title        | Introduction to the Legal System |
| Examination Session | Winter 2022                      |
| Paper Number        | 1                                |
| Internal Examiner   | Dr Fidelma White                 |
| External Examiner   | Dr Tanya Ní Mhuirthile           |
| Duration of Paper   | 1.5 hours                        |

## SCOPE OF THIS SCHEME

UCC does not release Section A (MCQ) papers for this module, so this scheme covers **Section B only** — the three long-answer essay questions, of which candidates answer **one** for 70% of the total mark. Full model answers are provided for **all three** Section B questions (B1, B2, B3) on this paper so you can prepare regardless of which one comes up. Section A is unpublished by the School and is not covered here.

| Section                    | Content                                          | Weight |
|----------------------------|--------------------------------------------------|--------|
| A — MCQ (30 Qs)            | Not released by UCC — not covered in this scheme | 30%    |
| B — Long Question (1 of 3) | Full model answers for B1, B2 and B3 below       | 70%    |

**Sourcing note.** Every case citation in this scheme has been checked against primary/reporting sources (BAILII, vLex/Justis case digests, or the Irish Reports) rather than typed from memory. Where a point of analysis goes beyond your lecture slides and course pack — i.e. it draws on the wider case law or academic commentary to build out the argument — it is flagged inline with a note like this one.

#### HOW THIS PAPER FITS THE SET

B1 on this paper ("the most important source of law") is the broadest version of a question that recurs across every LW1108 paper in this set in narrower forms — Winter 2024 asks whether the judiciary or the Oireachtas really makes law, and Winter 2023/24 asks the same about legislation. Revising this paper's B1 first, then the narrower versions, is an efficient order: the general framework here (Constitution > legislation > common law, and why) is the scaffolding the other two papers' answers hang off.

## Question B1

70% if selected

### QUESTION AS SET

Please identify what you believe to be the most important source of law in the Irish legal system, outlining its historical development to date, and explaining the reasons for your answer.

### HEADLINE POSITION

Bunreacht na hÉireann (the Constitution) is the most important source of law in Ireland: not because it generates the largest volume of legal rules — legislation does that — but because it is the source every other source derives its validity from. Legislation is law only if enacted consistently with the Constitution; EU law takes effect in Ireland only because Article 29.4 permits it; even the common law itself operates subject to and is capable of being tested against constitutional norms. This is a defensible personal position, not the only correct one, and the strongest essays show they know that, engaging seriously with the case for legislation or the common law before explaining why the Constitution wins out.

### FULL MODEL ANSWER

#### 1. The candidates: what "most important source of law" could mean

Irish law is drawn from several sources: the Constitution, legislation (Acts of the Oireachtas and delegated legislation), EU law, and the common law (judicial precedent). Before choosing, it is worth being explicit about what "most important" is being measured by, since different metrics point to different answers: *volume* (how much law originates there) favours legislation; *historical depth* favours the common law, which predates the modern Irish State; *supremacy* — the capacity to determine whether every other source is valid law at all — favours the Constitution. This answer adopts supremacy as the relevant metric and defends the Constitution on that basis, while giving the other two candidates a fair hearing.

#### 2. Historical development of the Constitution as a source of law

Ireland's constitutional history did not begin in 1937. The Irish Free State was established under the Constitution of the Irish Free State (Saorstát Éireann) Act 1922, itself given legal effect domestically by the Irish Free State Constitution Act 1922 of the Westminster Parliament. Article 50 of the 1922 Constitution permitted amendment, for an initial period of eight years, by ordinary legislation rather than by referendum. This proved to be a significant structural weakness: in *The State (Ryan) v Lennon* [1935] IR 170, the Supreme Court held, with evident reluctance on the part of the majority, that because Constitution (Amendment No. 17) Act 1931 (which introduced military tribunals with greatly reduced procedural protections) had been enacted by ordinary legislation within the amendment window Article 50 permitted, it was a valid amendment that the courts had no power to strike down — even though its substance clashed sharply with rights the 1922 Constitution had itself guaranteed. Kennedy CJ dissented, arguing that certain fundamental provisions were not open to amendment even by the Oireachtas acting within Article 50. *Ryan v Lennon* is the clearest illustration of what happens when the constitutional document itself can be rewritten by the ordinary legislature: it ceases to function as a meaningful check on legislative power, because the legislature can amend away any constraint it finds inconvenient.

Bunreacht na hÉireann, adopted by plebiscite in 1937 and coming into force on 29 December 1937, was deliberately structured to avoid this weakness. Article 46 requires that any amendment of the Constitution be approved by referendum of the People, not by ordinary Act of the Oireachtas — removing the mechanism that had made *Ryan v Lennon* possible under the 1922 text. Since 1937 the Constitution has been amended on numerous occasions by this referendum route, including the Third Amendment in 1972 (authorising EU/EEC membership), amendments accompanying subsequent EU treaties, and a range of amendments addressing personal rights and family status, each requiring the People's direct consent rather than a simple Oireachtas majority.

**Beyond the course pack.** Your lecture material covers the Constitution as a source of law in general terms; tracing the specific historical link between *Ryan v Lennon*'s weakness under the 1922 Constitution and the referendum-lock built into Article 46 of the 1937 text is the kind of "historical development" detail this question is specifically asking for, and elevates the answer beyond a general description.

### 3. Why the Constitution is supreme: the doctrinal evidence

Article 15.4.1° provides that the Oireachtas shall not enact any law repugnant to the Constitution, and Article 15.4.2° declares any such law invalid to the extent of the repugnancy. Article 34.3.2° gives the High Court jurisdiction to determine the validity of any law having regard to the Constitution, with rights of appeal ultimately to the Supreme Court. This machinery means that legislation — whatever its own claim under Article 15.2.1° to be the "sole and exclusive" law-making authority — is only law in Ireland to the extent the Constitution permits it to be. *Byrne v Ireland* [1972] IR 241 supplies a vivid illustration of the Constitution operating as the ultimate source of legal authority in the State: the Supreme Court held that the common law doctrine of sovereign immunity (inherited from the Crown) did not survive into the law of the State established by the Constitution, because Article 5's assertion of a sovereign, independent, democratic state meant sovereignty rested with the People, not with the State itself as against its own citizens — with the consequence that the State could, for the first time, be sued in tort. Even a rule as deeply embedded in the common law as Crown immunity yielded entirely once tested against the Constitution.

The same logic extends to EU law, which might otherwise appear to compete with the Constitution for supremacy. EU law has effect in Irish domestic law only because Article 29.4 (as amended, beginning with the Third Amendment in 1972) provides that no provision of the Constitution invalidates laws necessitated by the obligations of EU membership — meaning EU primacy operates in Ireland by constitutional permission, not independently of it. *Crotty v An Taoiseach* [1987] IR 713 confirms the point: the Supreme Court held that ratifying a treaty (the Single European Act) that went beyond what the existing constitutional amendment authorised required a fresh referendum, precisely because the Constitution, not the Oireachtas or the Government, ultimately controls how far European integration may proceed in Irish law.

### 4. The case for legislation, and why it falls short of "most important"

Legislation has real claims to primacy: Article 15.2.1° identifies the Oireachtas as the sole and exclusive law-making body, and the sheer volume of Acts, statutory instruments, and EU-derived rules implemented into Irish law each year dwarfs the number of new constitutional provisions in any given year. But this is a claim about quantity, not about which source is authoritative when two sources conflict. Legislation is always vulnerable to being struck down under Article 34.3.2° if it is repugnant to the Constitution; the reverse is never true — no statute can invalidate a constitutional provision. That asymmetry, not the volume of new rules each source produces, is the more meaningful measure of "importance" for a legal system, because it determines which source has the final word.

## 5. The case for the common law, and why it also falls short

The common law has the deepest historical roots of any source discussed here, predating the Irish State itself, and it continues to generate genuinely new law through precedent (as with the tort of negligence traced to *Donoghue v Stevenson* [1932] AC 562) and through the unenumerated rights doctrine under Article 40.3 (as in *McGee v Attorney General* [1974] IR 284). But precisely because the unenumerated rights doctrine operates through the Constitution's own text, this is better understood as evidence for the Constitution's importance rather than the common law's: the courts' law-making power in this context exists because Article 40.3 authorises it, and any common law rule — including a judicially-created constitutional doctrine — can in principle be tested against, and must yield to, the constitutional text if genuinely inconsistent with it, whereas ordinary common law rules can always be reversed by the Oireachtas legislating, which the Constitution itself cannot be (save by the People, under Article 46).

### EXAMINER'S TIP

This question rewards a clearly stated personal position defended with reasons, not a neutral survey of all four sources with no conclusion. Pick one, engage fairly with the alternatives, and use the "historical development" instruction as an opportunity to bring in specific dates, Acts, and cases rather than a vague timeline.

## 6. Conclusion

Legislation produces the greatest volume of new Irish law, and the common law has the longest and most continuous history, but the Constitution is the most important source of law in the Irish legal system because it is the source that determines whether every other source counts as valid law at all. Its own historical development — from the amendment vulnerability exposed in *The State (Ryan) v Lennon* under the 1922 Constitution to the referendum-locked 1937 text — was a direct response to the risk of a constitution that could not reliably constrain the ordinary legislature. *Byrne v Ireland* and *Crotty v An Taoiseach* both confirm, in different contexts, that the Constitution is the ultimate reference point against which the validity of common law rules, domestic legislation, and even EU law's domestic effect is measured. That supremacy, rather than volume or historical longevity, is the strongest available basis for identifying the Constitution as the most important source of law in Ireland.

### Mark Allocation — Question B1 (out of 100% of the question)

| Component                                                                                                                                                                                                 | Weight      |
|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------|
| Introduction — states a clear personal position and the metric ("importance") it is judged by                                                                                                             | 8%          |
| Historical development — accurately traces the 1922 to 1937 transition, including <i>The State (Ryan) v Lennon</i> and Article 46's referendum lock                                                       | 22%         |
| Doctrinal case for the chosen source — correctly explains and applies supporting authority (e.g. Art 15.4/34.3.2°, <i>Byrne v Ireland</i> , <i>Crotty v An Taoiseach</i> , if the Constitution is chosen) | 25%         |
| Fair engagement with at least one alternative source (legislation and/or common law) and why it is ultimately less "important" on the chosen metric                                                       | 25%         |
| Conclusion — a specific, reasoned answer that follows from the analysis rather than restating the introduction                                                                                            | 10%         |
| Overall coherence — the historical narrative and the doctrinal argument are integrated, not presented as two disconnected halves                                                                          | 10%         |
| <b>Total</b>                                                                                                                                                                                              | <b>100%</b> |

## Mark Bands

| Band                          | What must be present                                                                                                                                                                                                                                                                                                                                         |
|-------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>First Class<br/>(70%+)</b> | States and defends a clear personal position AND accurately traces the historical development from the 1922 to the 1937 Constitution, ideally with <i>The State (Ryan) v Lennon</i> AND supports the chosen source with correctly cited authority AND fairly engages with at least one genuine alternative AND reaches a specific, well-reasoned conclusion. |
| <b>2.1<br/>(60–69%)</b>       | States a personal position AND gives a broadly accurate historical account AND supports the choice with at least one correctly cited case, but the engagement with alternatives is thin or the argument is not fully integrated.                                                                                                                             |
| <b>2.2<br/>(50–59%)</b>       | States a position and gives a generally accurate but largely descriptive account of sources of law, with limited historical specificity and little critical reasoning for the choice made.                                                                                                                                                                   |
| <b>Third/Fail<br/>(0–49%)</b> | No clear personal position stated, materially inaccurate historical account, or no case authority offered in support of the answer given.                                                                                                                                                                                                                    |

Case citations: *The State (Ryan) v Lennon* [1935] IR 170; *Byrne v Ireland* [1972] IR 241; *Crotty v An Taoiseach* [1987] IR 713; *Donoghue v Stevenson* [1932] AC 562; *McGee v Attorney General* [1974] IR 284.

**QUESTION AS SET**

Identify and critically evaluate, with reference to case law and legislation where appropriate, the rules of statutory interpretation and the aids to interpretation which are available to judges.

**HEADLINE POSITION**

Irish judges have three overlapping interpretive approaches (the literal/plain-meaning rule, a purposive "schematic" approach the Irish courts prefer to the English "golden"/"mischief rule" labels, and, since 2005, a statutory purposive rule under section 5 of the Interpretation Act 2005), plus a set of intrinsic and extrinsic aids and presumptions to help apply them. The system works reasonably well for resolving genuine ambiguity, but the persistent exclusion of Oireachtas debates as an aid — maintained even after the 2005 Act — is a significant, and debatable, self-imposed limit on the material judges may draw on.

**FULL MODEL ANSWER****1. Why statutory interpretation is needed**

Legislation is drafted in advance of the disputes it will eventually be applied to, and language is inherently capable of more than one meaning when applied to facts the drafters did not specifically anticipate. Statutory interpretation is the body of rules, presumptions, and aids Irish courts use to resolve that uncertainty and determine what a statutory provision requires in a given case. Article 34.3.2° assigns this interpretive function to the courts, and the courts have consistently treated it as an exclusively judicial function that the Oireachtas cannot itself perform after the fact.

**2. The literal / plain-meaning rule**

The starting point for Irish courts is the ordinary and natural meaning of the words used. *Inspector of Taxes v Kiernan* [1981] IR 117 is the leading authority: the Supreme Court had to decide whether "cattle," as used in a taxing provision applicable to a "dealer in cattle," included pigs. Henchy J held that a statutory word addressed to the public at large should ordinarily be given its ordinary, colloquial meaning as understood by "the man in the street," rather than a specialised or technical meaning, unless the statute is addressed to a particular trade or class for whom the word carries a distinct, technical sense. On that basis "cattle" did not extend to pigs, and the taxpayer's appeal succeeded. Henchy J also articulated the presumption that provisions creating a penal or taxation liability should, where genuinely ambiguous, be construed strictly against the State — a specific sub-rule of the literal approach that continues to apply in criminal and revenue contexts.

**3. The purposive / "schematic" approach**

Where a literal reading would produce an absurd result plainly at odds with what the Oireachtas intended, Irish courts have generally avoided the English "golden rule" and "mischief rule" labels in favour of what is often called a schematic or teleological approach: examining the statute's long title, structure, and the pre-existing law it was designed to change, and interpreting the disputed provision consistently with that overall purpose. *Nestor v Murphy*

[1979] IR 326 is the leading illustration: section 3(1) of the Family Home Protection Act 1976 rendered void any conveyance of a family home made without the other spouse's prior written consent. On a literal reading, this would have voided a contract for sale that both spouses had jointly signed and agreed to, since neither had separately "consented" in writing to the other's act, in advance, before signing. Henchy J held this literal reading would produce a "pointless absurdity" outside the spirit and purpose of the Act — a statute designed to protect a spouse from being deprived of the family home by the other spouse's *unilateral* act — and construed the provision purposively so that a conveyance to which both spouses were joint, willing parties fell outside its scope. *Howard v Commissioners of Public Works* [1994] 1 IR 101, concerning whether a State authority was exempt from planning permission requirements when developing a visitor centre in the Burren, is a further example of the courts giving a "well within the spirit and intent" purposive reading to statutory and prerogative provisions rather than a narrowly literal one.

#### 4. The Interpretation Act 2005

Section 5 of the Interpretation Act 2005 gave this purposive approach a statutory foundation for the first time. Section 5(1) provides that where a provision of an Act (other than one imposing a penal or other sanction) is obscure or ambiguous, or would on a literal interpretation be absurd or fail to reflect the plain intention of the Oireachtas, the provision is to be given a construction that reflects the plain intention of the Oireachtas, where that intention can be ascertained from the Act as a whole; section 5(2) applies the equivalent rule to statutory instruments. Section 6 additionally permits a provision to be construed in light of developments in the law, in technology, and in the meaning of words, so as to give effect to the enactment according to its spirit, purpose, and text. The exclusion of penal provisions from section 5's purposive rule is significant and deliberate: applying a purposive construction to widen criminal liability beyond the literal words could raise constitutional difficulties (fair notice and legal certainty in criminal law), so the strict literal/penal-construction approach from *Kiernan* continues to apply in that context even after 2005.

#### 5. Intrinsic and extrinsic aids to interpretation

Intrinsic aids — material found within the Act itself — include the long title (which the courts may consult to identify the statute's general purpose, as in the schematic approach applied in *Nestor v Murphy*), headings, an interpretation/definitions section (now largely standardised across recent Acts by reference to the Interpretation Act 2005 itself), and punctuation.

Extrinsic aids — material outside the Act — are much more restricted in Ireland than in some comparable jurisdictions. *Crilly v T & J Farrington Ltd* [2001] 3 IR 251 is the leading modern authority: the Supreme Court firmly reaffirmed the "exclusionary rule" against the use of Oireachtas debates (ministerial statements, parliamentary discussion of a Bill) as an aid to interpreting the resulting Act, on the basis that admitting such material would be inconsistent with the separation of powers — the courts, not individual legislators' recorded intentions, must identify the objective intention of the Oireachtas as expressed in the enacted text. This puts Ireland at odds with the more permissive English approach taken in *Pepper v Hart* [1993] AC 593, which allows reference to ministerial statements in limited circumstances, and with practice in several other common law jurisdictions. Notably, the Law Reform Commission had considered relaxing this exclusionary rule when the Interpretation Act 2005 was being drafted, but the Oireachtas ultimately left the Act silent on the point, meaning the pre-existing common law exclusionary rule from *Crilly* continues to govern. Other recognised extrinsic aids include the meaning of an underlying international instrument where a statute is intended to give effect to it (also referenced in *Crilly*), dictionaries, and prior judicial interpretation of the same or similar statutory language.



**Beyond the course pack.** Your lecture material presents the rules and aids largely as a checklist; tying the extrinsic-aids exclusionary rule specifically to the drafting history of the Interpretation Act 2005 (the Oireachtas considered relaxing it and chose not to) is what allows a genuinely critical evaluation of why the rule persists, rather than a bare description of what it is.

## 6. Presumptions of interpretation

Alongside the rules and aids, Irish courts apply a set of interpretive presumptions that operate as default rules absent a clear contrary indication in the text: a presumption against retrospective effect (particularly where an enactment would interfere with vested rights), the presumption of strict construction of penal and taxation statutes already noted in *Kiernan*, a presumption of constitutionality attaching to every Act of the Oireachtas, and a presumption that the Oireachtas does not intend to legislate contrary to Ireland's international or EU law obligations where a provision is capable of being read consistently with them.

## 7. Critical evaluation

The combination of a literal starting point, a purposive fallback for genuine ambiguity or absurdity, and a statutory basis for that fallback in section 5 of the 2005 Act gives Irish courts real flexibility to avoid results Parliament plainly did not intend, as *Nestor v Murphy* demonstrates, without abandoning the predictability that comes from prioritising the enacted text. This is a defensible balance: a purely literal approach risks absurd or unjust outcomes in hard cases, while an unconstrained purposive approach risks judges substituting their own view of what the law *should* say for what the Oireachtas actually enacted, which raises real separation-of-powers concerns.

The more debatable feature is the continuing exclusion of Oireachtas debates as an aid to interpretation under *Crilly*. The justification — that individual legislators' recorded statements do not reliably reflect the objective intention of the Oireachtas as a whole, and that relying on them risks distorting rather than clarifying legislative meaning — has real force, particularly given the practical difficulty of attributing a single "intention" to a multi-member body voting on a text after limited debate. But it also means Irish courts resolve genuine ambiguity in exactly the circumstances where the parliamentary record might be most illuminating — where the text itself does not clearly answer the question — without consulting the one source that might directly record what the Oireachtas was trying to achieve. The Interpretation Act 2005's deliberate silence on this point, despite the Law Reform Commission having considered addressing it, reflects an Oireachtas choice to leave the pre-existing judicial exclusionary rule undisturbed rather than a considered policy decision either way, which is itself a fair target for critical assessment.

### EXAMINER'S TIP

"With reference to case law and legislation where appropriate" means you need both: at least one case per rule you discuss, and the Interpretation Act 2005 sections correctly numbered and explained, not just referenced in passing. An answer that names the rules without pinning cases to each will not clear the 2.1 band.

## 8. Conclusion

Irish judges have a layered toolkit for statutory interpretation: a literal starting point grounded in *Kiernan*, a purposive fallback illustrated by *Nestor v Murphy* and *Howard v Commissioners of Public Works*, and, since 2005, an express statutory basis for that fallback in section 5 of the Interpretation Act, alongside a set of intrinsic aids, presumptions, and a narrow set of extrinsic aids. The system generally strikes a workable balance between textual fidelity and avoiding absurdity, but the persistence of the exclusionary rule against Oireachtas debates, confirmed in *Crilly v T & J Farrington Ltd* and left undisturbed by the 2005 Act, remains its most debatable feature: a self-imposed limit on the interpretive material available to judges precisely in the cases where it might matter most.

## Mark Allocation — Question B2 (out of 100% of the question)

| Component                                                                                                                                                    | Weight      |
|--------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------|
| Introduction — identifies the rules/aids framework to be covered                                                                                             | 7%          |
| The literal rule — correctly explains and applies <i>Inspector of Taxes v Kiernan</i> , including the strict-construction presumption for penal/tax statutes | 18%         |
| The purposive/schematic approach — correctly explains and applies <i>Nestor v Murphy</i> and/or <i>Howard v Commissioners of Public Works</i>                | 18%         |
| Interpretation Act 2005 — correctly explains ss.5 and 6, including the penal-provision exclusion                                                             | 15%         |
| Intrinsic and extrinsic aids — correctly identifies intrinsic aids and explains the exclusionary rule via <i>Crilly v T &amp; J Farrington Ltd</i>           | 17%         |
| Critical evaluation — genuine assessment of the balance struck, with specific engagement with the exclusionary rule's justification and cost                 | 17%         |
| Conclusion — a specific, reasoned assessment rather than a restated introduction                                                                             | 8%          |
| <b>Total</b>                                                                                                                                                 | <b>100%</b> |

## Mark Bands

| Band                          | What must be present                                                                                                                                                                                                                                                                                                                                                                                                        |
|-------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>First Class<br/>(70%+)</b> | Correctly explains and applies the literal rule ( <i>Kiernan</i> ) AND the purposive approach ( <i>Nestor v Murphy</i> or <i>Howard</i> ) AND correctly explains s.5 (and ideally s.6) of the Interpretation Act 2005 AND correctly explains the extrinsic-aids exclusionary rule via <i>Crilly</i> AND provides a genuine critical evaluation of at least one specific feature of the system (e.g. the exclusionary rule). |
| <b>2.1<br/>(60–69%)</b>       | Correctly explains and applies at least two of the three interpretive approaches with accurate case authority AND references the Interpretation Act 2005, but the critical evaluation is thin or one element (aids, presumptions, or the 2005 Act) is missing.                                                                                                                                                              |
| <b>2.2<br/>(50–59%)</b>       | Names the rules and aids with broadly accurate case law but with limited or no genuine critical evaluation, and/or an inaccurate account of the Interpretation Act 2005.                                                                                                                                                                                                                                                    |
| <b>Third/Fail<br/>(0–49%)</b> | No accurate case authority for any rule of interpretation, materially inaccurate account of the Interpretation Act 2005, or purely descriptive with no evaluative content at all.                                                                                                                                                                                                                                           |

Case citations: *Inspector of Taxes v Kiernan* [1981] IR 117; *Nestor v Murphy* [1979] IR 326; *Howard v Commissioners of Public Works* [1994] 1 IR 101; *Crilly v T & J Farrington Ltd* [2001] 3 IR 251, [2001] IESC 60; *Pepper v Hart* [1993] AC 593.

Legislative references: Interpretation Act 2005, ss. 5, 6.

## Question B3

70% if selected

### QUESTION AS SET

Litigation should be avoided at all costs in relation to business disputes.

Critically evaluate this statement.

### HEADLINE POSITION

"At all costs" is an overstatement the moment it is examined closely. Litigation genuinely is the least attractive option for most business disputes on cost, speed, publicity, and relationship-preservation grounds, and Irish policy (through the Mediation Act 2017's mandatory pre-litigation advice requirement) actively steers parties away from it as a first resort. But there are specific, recurring categories of business dispute where litigation is not just tolerable but the correct choice — urgent injunctive relief, disputes over a genuinely contested point of law where precedent value matters, and cases where the other party will not negotiate, mediate, or arbitrate in good faith. An absolute claim that litigation should be avoided "at all costs" cannot survive those categories.

### FULL MODEL ANSWER

#### 1. The strong case for avoiding litigation in business disputes

The case for avoiding litigation is genuinely powerful and reflects a clear direction of policy travel in Ireland. Litigation before the ordinary courts is conducted in open court and produces a public judgment, exposing commercially sensitive information, trade secrets, and reputational matters that a business would usually prefer to keep confidential. It is comparatively slow — particularly in the High Court, where complex commercial cases can take years to reach trial — and comparatively expensive, given the cost of formal pleadings, discovery, and trial preparation. It is also structurally adversarial: the process is built around one party winning and the other losing, which tends to permanently damage an ongoing commercial relationship (a supplier and customer, or joint venture partners) in a way a negotiated or mediated outcome does not.

This case is reflected in Irish legislative policy. Section 14 of the Mediation Act 2017 requires practising solicitors to advise clients, before issuing court proceedings, to consider mediation as a means of resolving the dispute, and to provide information about mediation services — a clear statutory steer toward exhausting less adversarial options first. Arbitration under the Arbitration Act 2010, adopting the UNCITRAL Model Law, offers many businesses a private, binding alternative that avoids litigation's publicity while still producing an enforceable, final outcome, particularly valuable in cross-border commercial disputes given enforceability under the New York Convention 1958.

#### 2. Why "at all costs" overstates even this strong case

The claim in the question is not merely that litigation is usually the worst option — it is that it should be avoided *at all costs*, meaning even where the costs of avoiding it are very high. That absolute framing does not survive several recurring categories of business dispute.

First, urgent interim relief is available only through the courts. Where a business needs to restrain a departing employee from breaching a non-compete clause, stop a counterparty from disposing of assets, or prevent an imminent breach of a critical contract before irreversible harm occurs, an interlocutory injunction is the only mechanism capable of delivering a binding, immediately enforceable order in the necessary timeframe. *Campus Oil Ltd v Minister for Industry and Energy (No 2)* [1983] IR 88 remains the leading Irish authority on the test for an interlocutory injunction (a fair question to be tried, whether damages would be an adequate remedy, and where the balance of convenience lies), and no equivalent, equally rapid and legally binding mechanism exists in mediation or arbitration, which depend on the other party's willingness to engage and, in arbitration's case, on an arbitration agreement already being in place and an arbitrator being appointed. A business facing genuine, time-critical harm cannot be advised to avoid litigation "at all costs"; litigation may be the only tool available.

Second, litigation is necessary wherever the other party will not engage in good faith with negotiation, mediation, or arbitration. Mediation, as discussed in the Mediation Act 2017 context, is non-binding unless and until a settlement is reached; if a counterparty simply refuses to mediate, or negotiates without any real intention of settling, the aggrieved business has no means of compelling a resolution outside the court system. Arbitration requires a prior arbitration agreement; a business with no such clause in its contract, dealing with a counterparty who will not agree to arbitrate after the dispute has arisen, has no arbitral forum available to it at all. In both scenarios, "avoiding litigation at all costs" would leave the business with no means of vindicating its rights whatsoever.

Third, litigation has structural advantages the alternatives cannot replicate, which matter for particular kinds of business dispute: a right of appeal (Circuit Court to High Court; High Court to the Court of Appeal, and in defined circumstances to the Supreme Court), meaning a wrongly decided first-instance judgment is correctable in a way a final arbitral award, reviewable only on narrow procedural grounds, is not; coercive powers of discovery and compellability of witnesses that neither mediation nor, to the same extent, arbitration possess automatically; and the capacity to generate binding legal precedent, which matters where a business needs legal certainty on a point likely to recur (a standard-form contract clause used across many customer relationships, for example), since a private arbitral award or a confidential mediated settlement resolves only the individual dispute and creates no public precedent at all.

### 3. Reconciling the two positions: when does litigation remain the right choice?

The strongest resolution of the question distinguishes ordinary commercial disputes, where the case against litigation is close to overwhelming, from a narrower but real category where litigation is not just acceptable but necessary: disputes requiring urgent injunctive relief, disputes with a counterparty unwilling to engage with any consensual process, and disputes where establishing a binding legal precedent matters more to the business than resolving the individual dispute quickly and quietly. Ireland's High Court also operates a Commercial Court list for high-value commercial disputes, offering more active case management and a faster timeline than ordinary High Court litigation — a recognition, within the litigation system itself, that business disputes have particular needs the ordinary civil process does not always meet, and a partial answer to the speed and cost objections that most strongly support avoiding litigation in the first place.

#### EXAMINER'S TIP

"Critically evaluate this statement" is explicitly inviting disagreement with the absolute "at all costs" framing. An answer that agrees with the statement throughout, however well-supported with mediation and arbitration material, has not critically evaluated an absolute claim — it has only supported one side of it. The strongest essays identify specific categories of dispute where the claim breaks down, as above, rather than simply listing litigation's general disadvantages.

## 4. Conclusion

Litigation should usually be avoided in business disputes, and Irish policy, through the Mediation Act 2017's mandatory pre-litigation advice requirement and the broader availability of arbitration under the Arbitration Act 2010, actively encourages exactly that. But "avoided at all costs" is an absolute claim that fails once tested against urgent injunctive relief (*Campus Oil*), counterparties unwilling to engage with any consensual process, and disputes where binding legal precedent genuinely matters to the business. The accurate position is that litigation should be the last resort in the great majority of business disputes, not that it should never be used regardless of what the alternative costs of avoiding it would be — and a business, or its lawyer, advised to avoid litigation "at all costs" in a case falling into one of those categories would be poorly served by that advice.

### Mark Allocation — Question B3 (out of 100% of the question)

| Component                                                                                                                                              | Weight      |
|--------------------------------------------------------------------------------------------------------------------------------------------------------|-------------|
| Introduction — identifies "at all costs" as the specific claim to be tested, not just the general topic of dispute resolution                          | 10%         |
| The case for avoiding litigation — cost, delay, publicity, relationship damage, correctly linked to the Mediation Act 2017 and/or Arbitration Act 2010 | 25%         |
| Why "at all costs" overstates the case: urgent relief — correctly explains and applies <i>Campus Oil Ltd v Minister for Industry and Energy (No 2)</i> | 20%         |
| Why "at all costs" overstates the case: unwilling counterparties and the non-binding nature of mediation/dependence of arbitration on agreement        | 15%         |
| Why "at all costs" overstates the case: appeal rights, coercive powers, and precedent value unique to litigation                                       | 15%         |
| Conclusion — a specific, reasoned reconciliation rather than a one-sided restatement                                                                   | 15%         |
| <b>Total</b>                                                                                                                                           | <b>100%</b> |

### Mark Bands

| Band                          | What must be present                                                                                                                                                                                                                                                                                                                                                                 |
|-------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>First Class<br/>(70%+)</b> | Fully develops the case for avoiding litigation with correct legislative references AND identifies at least two specific categories where "at all costs" fails (urgent relief with <i>Campus Oil</i> , unwilling counterparties, appeal/precedent value) with accurate reasoning AND reaches a conclusion that explicitly reconciles the two positions rather than picking one side. |
| <b>2.1<br/>(60–69%)</b>       | Develops the case for avoiding litigation accurately AND identifies at least one category where the absolute claim fails, but the treatment is less developed or the conclusion doesn't fully reconcile the two positions.                                                                                                                                                           |
| <b>2.2<br/>(50–59%)</b>       | Accurately describes litigation's disadvantages relative to ADR/arbitration but largely agrees with "at all costs" throughout, without genuinely testing the absolute claim.                                                                                                                                                                                                         |
| <b>Third/Fail<br/>(0–49%)</b> | Materially inaccurate account of litigation, mediation, or arbitration in Ireland, no relevant case or legislative authority, or does not engage with "at all costs" as the specific claim being tested.                                                                                                                                                                             |

Case citations: *Campus Oil Ltd v Minister for Industry and Energy (No 2)* [1983] IR 88.

Legislative references: Mediation Act 2017, s.14; Arbitration Act 2010, s.9; UNCITRAL Model Law on International Commercial Arbitration (1985, as amended 2006); New York Convention on the Recognition and Enforcement of Foreign Arbitral Awards 1958.